

OSGOODE HALL LAW SCHOOL
YORK UNIVERSITY
DECEMBER EXAMINATION
April 14, 2025
Public and Constitutional Law
Examiner: Prof. Kate Glover Berger
Time: 1:30 pm to 4:30 pm

OPEN BOOK EXAMINATION

1. This exam consists of 16 pages, including 3 pages of instructions. Please ensure that you have the complete file and that you review all pages.
2. This is an open book exam. You are permitted to access any materials that are not excluded by the Instructor's Policy on AI or by any other York University or Osgoode Hall policy (or equivalent). Thus, you are permitted to access material such as your textbook, your personal notes, judicial opinions available online, lecture outlines, and any other supplementary materials listed in the syllabus. You are not permitted to use generative AI tools (e.g. Chat GPT) to generate text or to generate material that is used as the basis for text that is submitted on the exam. In other words, you are not permitted to use generative AI tools for any purpose related to the answers you submit on this exam.
3. Students are reminded of their obligations with respect to academic honesty. This exam is held remotely from any location that is convenient and accessible to the student. Students remain responsible for complying with their academic and ethical obligations under all applicable rules and policies of York University and Osgoode Hall Law School.
4. During the exam, you are not permitted to communicate with anyone about the exam or matters related to this course. By submitting your exam answers, you affirm that you have not discussed any part of the exam, or collaborated on answers, with anyone, at any time, including colleagues, other legal professionals, and GenAI, in accordance with the relevant policies on Academic Honesty and Integrity, the Instructor's Policy on AI, and other York University and Osgoode Hall policies. (This does not prevent you from communicating with Student Services if necessary).
5. You will access the exam through the **Public & Constitutional Law Take-home Exam DropBox** (accessed through MyOsgoode (sign into MyOsgoode, click on "Exams and Assignments", and access the DropBox for our course)). At the conclusion of the exam, **please return to the Public & Constitutional Law Take-home Exam DropBox to upload your answers.**

6. Please submit your answers in PDF format.
7. When you upload your answers, DO NOT USE YOUR NAME; use your FINAL EXAM NUMBER ONLY. To ensure anonymity, please do not identify yourself in any way in your answers.
8. This exam is worth 55% or 30% of your final grade, depending on your choice regarding the optional assignment.
9. This exam consists of three parts: Part 1 (Multiple Choice/True-False) is worth TWENTY (20) marks, Part 2 (Hypothetical Fact Pattern) is worth SIXTY (60) marks, and Part 3 (Agree or Disagree) is worth TWENTY (20) marks, for a total of 100 marks. You are required to answer ALL Parts. Note, however, that there is a choice of questions in Parts 1 and 3.
 - a. In **Part 1 (Multiple Choice/True-False)**, please answer TEN (10) of the TWELVE (12) questions provided. Each answer is worth TWO (2) marks. For each question, please indicate the option that you think best answers the question asked. No marks are awarded for explaining your choice and no marks are awarded for answering more than 10 questions. If you answer more than ten, only the first ten appearing in your exam answers will be graded. If you answer a question in Part 1 that you believe to be genuinely ambiguous, please explain the ambiguity and your interpretation when providing your answer.
 - b. In **Part 2 (Hypothetical Fact Pattern)**, there are THREE (3) questions, each worth 20 marks. All students must answer these questions.
 - c. In **Part 3 (Agree or Disagree)**, please answer ONE (1) of the TWO (2) questions provided. If you answer both questions, only your first answer will be graded.
10. There is no word limit for your answers but keep in mind that your answers are stronger if they deal only with relevant material and issues.
11. Written answers are assessed on two criteria: (a) quality of communication and (b) quality of analysis and/or argument.

12. Each part of the exam includes a suggested time to spend on that part. These times broadly reflect the points value for each part. I strongly recommend that you stick to these suggested times. It is always in your interest to address at least part of every question rather than leaving one Part of the exam or one question completely blank.
13. I'm wishing you the very best on the exam. It has been a true joy to be part of your first year of law school. Thank you for your investment in the course and for all you have taught me. I am so eager to read your exams and see all that you have learned!

PART I

(20 marks) (Suggested time: 40 minutes)

PART I: MULTIPLE CHOICE & TRUE/FALSE

Please answer **any TEN (10) of the TWELVE (12)** questions in this section by choosing the one answer option that you think is correct. **Each answer is worth TWO (2) marks.** For each question, please indicate the option that you think best answers the question asked. There is no need to explain your answer and no marks will be awarded for doing so. Only the first ten questions that you answer will be marked. If you answer a question in Part I that you believe to be genuinely ambiguous, please explain the ambiguity and your interpretation when providing your answer.

1. **TRUE or FALSE:** If a statute's purpose is linked to an issue of morality, the law will necessarily fall under Parliament's jurisdiction over criminal law under section 91(27) of the *Constitution Act, 1867*.
2. The federal *Lobster Fishery Regulations* prohibit trapping lobsters in the Bay of Fundy outside of a defined "lobster season". Mr. Wren, a member of the Mi'kmaq Nation, has been charged with breaching the *Regulations*. He admits that he trapped lobsters for his own personal use in the Bay of Fundy outside of the defined season. However, he argues that the *Regulations* breach his Aboriginal right to trap lobster (for use as food and for ceremonial purposes) in the Bay of Fundy outside of the season set by the *Regulations*. It is the Attorney General of Canada's position that this claim for an Aboriginal right is unfounded and that even if Mr. Wren has an Aboriginal right, the *Lobster Fishery Regulations* are a justified limit on the right.

You are counsel for Canada. Which of the following facts or arguments would strengthen your case?

- a. The *Regulations* were adopted as long-term measures to conserve the supply of lobster.

- b. The historical evidence shows that, prior to contact with European settlers, whenever members of the Mi'kmaq Nation trapped lobsters, the lobsters were traded for food and supplies that were not available on the coast.
 - c. The federal government has regulated the lobster fishery since 1950 by setting quotas and prohibiting lobster trapping outside of the defined lobster season.
 - d. Only (a) and (b) would strengthen your case.
 - e. All of the above would strengthen your case.
3. **TRUE or FALSE:** A provincial legislature can make law in response to an emergency within its jurisdiction.
4. You are asked to provide advice about the law on sections 1 and 33 of the *Canadian Charter of Rights and Freedoms*. What advice could you accurately provide?
- a. Section 1 has been successfully relied on as the basis for justifying limits on Aboriginal rights that are recognized by section 35(1) of the *Constitution Act, 1982*.
 - b. A statute that includes a provision invoking section 33 can never be inconsistent with the *Charter*.
 - c. The use of section 33 is subject to section 1.
 - d. Section 33 operates notwithstanding section 1.
 - e. As established in *Ford v Quebec (AG)*, [1988] 2 SCR 712, when a statute invokes section 33, the statute must also state the ways in which it limits specific *Charter* rights.
5. Which of the following is an accurate statement about Parliament's power to make laws in relation to peace, order, and good government ("POGG")?
- a. When a matter falls under the national concern branch of Parliament's POGG power, that matter is permanently added to Parliament's jurisdiction.

- b. Legislation enacted under the emergencies branch of POGG need not receive royal assent before coming into force; emergency legislation must be enacted quickly.
 - c. If a matter is important to the country as a whole and is qualitatively different than provincial matters, it will be a matter of national concern under Parliament's POGG power.
 - d. All the above are accurate.
 - e. None of the above is accurate.
6. **TRUE or FALSE:** Any statute that includes a prohibition and a penalty that seeks to maintain public order and safety is criminal law according to the division of powers.
7. You are responsible for drafting new provincial legislation dealing with conservation in northern British Columbia. Before drafting, you are compiling a list of constitutional rules that govern your work. Which of the following rules could you accurately include in your list?
- a. When assessing whether an Aboriginal right was extinguished before 1982, you need not consider provincial legislation. A valid provincial statute cannot extinguish an Aboriginal right.
 - b. It is not possible for valid provincial legislation to limit rights recognized by section 35(1) of the *Constitution Act, 1982* because only Parliament can make laws in relation to Indigenous Peoples and their land under section 91(24) of the *Constitution Act, 1867*.
 - c. It is not possible for a province to justify a breach of section 35(1) of the *Constitution Act, 1982* because provincial legislatures cannot make laws in relation to Indigenous Peoples and their land.
 - d. After *Tsilhqot'in Nation v British Columbia*, 2014 SCC 44, no provincial statutes in British Columbia apply to the land over which the Tsilhqot'in Nation holds Aboriginal Title.
 - e. None of the above is accurate.

8. **TRUE or FALSE:** As held in *R v Sparrow*, [1990] 1 SCR 1075, Aboriginal rights that were extinguished at the time of contact were revived by the entrenchment of section 35(1) of the *Constitution Act, 1982*.
9. Which of the following is not accurate in Canadian constitutional law?
- a. A law that applies uniformly to everyone can breach section 15(1) of the *Charter*.
 - b. Everyone in Canada is protected by the rights and freedoms guaranteed in the *Charter*.
 - c. After *Delgamuukw v British Columbia*, [1997] 3 SCR 1010 and *Tsilhqot'in Nation v British Columbia*, 2014 SCC 257, in order to successfully claim Aboriginal Title over land, an Indigenous community must establish that they have occupied the land in a way that meets the legal standards of sufficiency, continuity, and exclusivity.
 - d. A federal statute will be valid if its pith and substance falls under the national concern branch of Parliament's POGG power.
 - e. Both Parliament and the provinces can pass laws dealing with health, the environment, and guns.
10. **TRUE or FALSE:** *R v Big M Drug Mart*, [1985] 1 SCR 295 holds that *Charter* interpretation should be generous, purposive, and account for the applicable linguistic, philosophic, and historical contexts.
11. In your third year of law school, you go on exchange to the University of Melbourne. In your Comparative Constitutional Law course, you try to describe some features of the *Canadian Charter of Rights and Freedoms*. You say the following:
- Along other things, the Canadian Charter of Rights and Freedoms guarantees fundamental freedoms such as freedom of speech and assembly, as well as legal rights like the right to a fair trial. The *Oakes* test, which is used by the courts to determine whether a limit on a *Charter* rights is justified, requires courts to assess whether the law has a rational connection to a pressing objective, whether the law minimally impairs the right, and whether the benefits of the law outweigh the negative effects. When applying the *Oakes* test, the courts show no deference to government decision-making -- the government must be held to a high standard when *Charter* rights are at

stake. For the same reason, the courts do not consider contextual factors when applying the *Oakes* test; the *Charter* must be interpreted strictly to ensure that it is upheld.

Later on, you are reflecting on your description of the *Charter* and ask yourself whether you were accurate. Were you?

- a. Yes, your description was fully accurate.
- b. You made at least one error. *Edmonton Journal v Alberta (AG)*, [1989] 2 SCR 1326 shows that the context in which a right arises is important when assessing whether a limit is justified under section 1.
- c. You forgot to explain that because *Oakes* was a criminal case, the *Oakes* test is only used when assessing whether a criminal law justifiably limited a *Charter* right.
- d. You forgot to explain that the *R v Oakes*, [1986] 1 SCR 103 test only applies when there has been a breach of section 2 or sections 7 through 15 of the *Charter*. Sections 3, 4, 5 and 6 of the *Charter* deal with democratic and mobility rights, a breach of which cannot be justified.
- e. None of the statements in your description was accurate.

12. In *Canada (AG) v Bedford*, 2013 SCC 72, Chief Justice McLachlin writes: “The *Motor Vehicle Reference* recognized that the principles of fundamental justice are about the basic values underpinning our constitutional order. The s. 7 analysis is concerned with capturing inherently bad laws: that is, laws that take away life, liberty, or security of the person in a way that runs afoul of our basic values. The principles of fundamental justice are an attempt to capture those values” (para 96).

Which of the following statement(s) is/are consistent with the current law on the ‘principles of fundamental justice’?

- a. The principles of fundamental justice include basic values against arbitrariness, overbreadth, and gross disproportionality.
- b. The principles of fundamental justice prohibit a law from being inadequately connected to its objective or from going too far, in some sense, when seeking to attain that objective.

- c. The principles of fundamental justice are not the same as principles of natural justice or principles of procedural justice.
- d. The principles of fundamental justice are qualifiers of the right not to be deprived of life, liberty, and security of the person.
- e. All of the above are accurate.

PART II. ANALYSIS OF HYPOHETICAL FACT PATTERN (60 marks; suggested time: 1h40min)

On April 13th, your news feed includes the following articles:

From Boca Raton Chronicle: www.brchronicle.com/cemeterymaintenance/041220105

Dispute Erupts Over Cemetery Maintenance Guidelines in Boca Raton

Boca Raton, FL – April 12, 2025

A growing dispute in Boca Raton, Florida, has not only gone viral but has divided this quiet community and prompted legal action after the city's 'Friends of the Cemetery Collective' removed religious markers placed on graves at the Boca Raton Cemetery. The markers—crosses, stones, and other memorial items—were removed in accordance with guidelines drafted by the Collective, a group of volunteers that maintains the cemetery grounds, performs all tasks of upkeep, and manages arrangements at the cemetery during a funeral.

The dispute began when the city's mayor asked the Collective to ensure the Cemetery was in compliance with the city's Municipal Regulations, which prohibit vertical markers or monuments in the Boca Raton Cemetery, the city's only cemetery that is on government-owned, rather than privately-owned,

land. According to the Regulations, graves can be marked only with flat, horizontal markers that are flush with the ground. Part of the Collective's stated mandate is to "keep watch over the Boca Raton Cemetery to ensure that the solemnity and beauty of this sacred civic site are respected and protected." In response, the Collective drafted the "Cemetery Maintenance Guidelines," which stated, "All members of the Collective will respectfully but swiftly remove any vertical markers or monuments found on grave sites in the Boca Raton Cemetery." This aligns with Collective's mandate, posted on its website and drafted by the Collective's founders, which provides that the Collective strives to ensure that the Cemetery and its uses are comply with all applicable laws.

The guidelines were emailed to Collective members and posted

throughout the cemetery and in the Boca Raton Chronicle to ensure all volunteers were aware of the new policy.

Tensions escalated when several family members of the deceased, who had placed religious items on graves—such as Christian crosses and stones used in Jewish memorial practices—found their personal markers removed by Collective volunteers. The family members, citing religious beliefs, argue that the items were placed in accordance with their faiths, claiming that these acts were necessary to protect their loved ones after death, to ensure respect of their burial sites, and to serve as an icon linked to prayer and religious reflection.

However, experts in both Judaism and Christianity have said that these religious practices are not mandatory for fulfilling core religious obligations, though they may be personally

meaningful for many. Despite these expert opinions, the families involved maintain that their actions were deeply rooted in their religious convictions.

This has led to mounting frustration, with some families questioning the actions of the Collective and the city's role in the matter. Legal action is now underway, with plaintiffs preparing to argue that the removal of the religious markers unjustifiably infringes upon their constitutional rights.

Complicating the situation is uncertainty over the Collective's legal status. It's unclear whether the group, a volunteer organization with no formal city-employed status, can be sued or held to constitutional standards. While the city's mayor directly asked the Collective to ensure the cemetery complies with municipal regulations, the group operates independently, with fluid membership and no paid staff.

The Collective does include two municipal councillors and a state representative as volunteers, and the city reimburses the Collective's expenses for

cemetery upkeep. Under state law, municipalities must maintain and manage burial grounds, either directly or through contractors, in accordance with all applicable laws and with appropriate measures of respect and solemnity. For over a decade, Boca Raton has relied on the Collective to maintain and manage the cemetery. They do not have a written contract – that is contrary to the Collective's ethos – but they have a verbal agreement that the Collective is responsible for carrying out the city's obligations under state law.

For now, the situation continues to stir emotions on both sides. Supporters of the Collective argue that the guidelines are necessary for maintaining consistency and adherence to municipal rules. Further, supporters point to the Collective long-standing record of efforts to preserve the aesthetic and legal standards of the cemetery. Others express concern over what they view as an overreach that infringes upon deeply held religious beliefs. They emphasize the need to balance those regulations with respect for personal religious expression. These opponents have

raised questions about anti-religious motivations behind these rules.

As the legal battle unfolds, the city of Boca Raton, its residents, and the broader public will be watching closely to see how the courts weigh the competing interests of religious freedom, municipal regulation, and the role of volunteer organizations in public affairs.

"It's a matter of principle," said one local resident. "These items—these crosses and stones—are a part of who we are, and they offer comfort. It's more than just a regulation; it's about honoring our loved ones in a way that is meaningful to us."

Another resident, a member of the Collective, responded: "We're just trying to follow the law. The city asked us to make sure the cemetery complies with its regulations, and that's what we're doing. We respect the religious beliefs of those involved, but the rules are in place for a reason. And the rules don't say anything about religion."

From Sphere & Post online: www.sphereandpostonline.ca/federalcampaigntrail202050413

Federal Party Leaders on the Campaign Trail: “Don’t ask me about America!”

Ottawa, Ontario – April 13, 2025

As the 2025 federal election heats up, Canadian party leaders are being asked about a growing dispute in Boca Raton, Florida, that has gone viral. The controversy centers on the removal of religious markers—Christian crosses and Jewish memorial stones—from graves at the city’s public cemetery. A volunteer group maintaining the cemetery followed city regulations prohibiting vertical markers and now is facing harsh backlash from the religious right and conservative politicians. The group’s actions have sparked outrage, legal action, and public debate, making headlines across the United States.

The dispute in Boca Raton went viral in the United States, primarily because it taps into the deeply divisive debate in American politics over the separation of church and state. As religious symbols were removed from graves, many families saw it as an infringement on their religious freedoms, leading to heated arguments about the role of government in regulating personal

expression. This controversy comes at a time when discussions about the boundaries between church and state have become a central theme in American public discourse, affecting everything from school policies to healthcare. to government regulations. This debate rages even though the group at the heart of it is not a government official or agency; it’s just a group of concerned citizens who want to protect and maintain a beautiful local cemetery.

Despite the growing public interest in the story, Canadian party leaders are steering clear of commenting, particularly when asked how Canadian courts might handle a similar case.

PM: Focus on Domestic Issues

The Prime Minister, when asked during a campaign stop in Vancouver how Canadian courts would respond to such a dispute, emphasized the need to focus on Canadian issues. “Our courts operate under Canadian law, and our priorities

are domestic,” Trudeau said. “I think it’s important that we stay focused on the challenges facing Canadians here at home. That’s where my attention is.”

Tories: Canada’s Values at the Forefront

The Conservative Leader was also asked whether a dispute like the one in Florida could arise in Canada. “We have strong protections for religious freedom in Canada,” Poilievre responded. “But I believe Canadians want us focused on the issues that affect them directly, like the economy and public safety. This is not the time for speculation on foreign matters.”

NDP: Protecting Religious Rights

The NDP Leader was pressed on whether a similar situation could happen in Canada. “Religious freedom is enshrined in our Charter of Rights and Freedoms, and our courts would address

any disputes related to that. But let's be clear, our campaign is focused on the challenges Canadians are facing," Singh replied.

Public Reaction in Canada

In Canada, reactions to the dispute have been mixed. Some Canadians think that Canada should at least show empathy or some concern. "I'm surprised no one has said anything about the situation," said a Toronto resident. "It's not just about law; it's about respect for people's deeply held beliefs. This could happen here, too, especially with how polarized things are becoming."

A voter in Calgary presented a different view: "I don't know why this Boca Raton thing is blowing up. It's not the government doing anything. And it's a rule that applies the same to everyone. What's wrong with that? I wish the party leaders would just say, 'Who cares?'".

From the Montreal Sun online: www.montrealsun/manicouaganlakes13042025

Quebec Approves Mining Project Near Manicouagan Lakes Despite Indigenous Community's Concerns

April 13, 2025 – Associated Press

The Quebec Ministry of Natural Resources has granted a permit for the development of a large-scale refinery near the Pashaganisk River. The evidence shows that the project will likely impact the Manicouagan Lakes and surrounding lands in meaningful ways. The Pashaganisk River feeds directly into the Manicouagan Lakes and BlueRock Minerals' new refinery will involve diverting part of the river's flow to manage waste and tailings.

The community has raised significant concerns about the potential environmental impacts of the project at every stage. The Manicouagan Lakes First Nation holds Aboriginal Title to the Lakes and surrounding land under an agreement with the provincial and federal governments. The land and the lakes are central to the First Nation's way of life, historically and today, including to their practices related to fishing, hunting, and transportation. The entire project takes place on the First Nation's traditional

territory, all of which is now held under Aboriginal Title.

Despite this, the Ministry formally approved the permit. A letter from the Minister to the First Nation, dated April 1, 2025, provides:

"After careful consideration of the environmental impact assessment (EIA) submitted by BlueRock Minerals, as well as the feedback received from the Manicouagan Lakes First Nation, the Ministry of Natural Resources has decided to approve the permit for the proposed Pashaganisk River Project, which includes a refinery and river diversion measures."

The letter continued:

"The concerns raised by the First Nation were duly noted, particularly those related to potential impacts on fish migration and quality of the water flowing downstream. The Ministry recognizes the cultural and economic importance of the Pashaganisk

River to the First Nation and appreciates the feedback provided during the consultation process."

The letter further stated:

"While the Ministry acknowledges the First Nation's concerns, it is satisfied that the consultation process has adequately addressed the issues raised. The Ministry believes that the economic benefits of the mining project, including job creation and increased regional economic activity, outweigh the potential environmental risks."

The Ministry was also persuaded by proposed mitigation measures. The Minister's letter concluded: "Furthermore, the mitigation measures outlined by BlueRock Minerals, combined with the ongoing monitoring program, should sufficiently minimize any long-term impacts." Members of the Manicouagan Lakes First Nation are not convinced. They are exploring their legal options.

QUESTIONS ABOUT THE FACT PATTERN

Please answer the following questions in relation to the fact pattern set out above. Fully explain your answers with reference to the relevant facts and authorities. Your answers are assessed on the basis of quality of analysis and quality of communication.

Question 1 (20 marks)

Assume that the facts described in the article, “Dispute Erupts Over Cemetery Maintenance Guidelines in Boca Raton,” happened in Canada and that the affected families want to challenge the Friends of the Cemetery Collective’s “Cemetery Maintenance Guidelines” on *Charter* grounds. Would the *Canadian Charter of Rights and Freedoms* apply in the circumstances?

Question 2 (20 marks)

Assume: (a) the facts described in the article, “Dispute Erupts Over Cemetery Maintenance Guidelines in Boca Raton,” happened in Canada; and (b) the *Charter* applies to all activities of the Friends of the Cemetery Collective, including the enactment of the “Cemetery Maintenance Guidelines”. Do the Guidelines limit section 2(a) of the *Charter*?

Question 3 (20 marks)

Assume: (a) the facts described in the article, “Dispute Erupts Over Cemetery Maintenance Guidelines in Boca Raton,” happened in Canada; (b) the *Charter* applies to all activities of the Friends of the Cemetery Collective; and (c) the “Cemetery Maintenance Guidelines” impose a limit on section 2(a) of the *Charter*. Is this limit ‘prescribed by law’ within the meaning of section 1 of the *Charter*?

PART III
(20 marks) (Suggested time: 40 minutes)

PART III: AGREE or DISAGREE

Choose ONE (1) of the two questions in this section and respond directly to the question asked. Please identify whether you agree or disagree with the statement provided and fully explain your choice, with reference to authorities and specific examples, as needed. Your answers will be evaluated for the quality of the analysis and quality of the communication.

1. Recall the facts set out in the article, “Quebec Approves Mining Project Near Manicouagan Lakes Despite Indigenous Community’s Concerns,” set out in Part II of this exam.

AGREE or DISAGREE: In light of the facts set out in the article, the Quebec Ministry of Natural Resources met its obligations under the duty to consult when issuing the permit to BlueRock Minerals for the development of its refinery.

2. **AGREE or DISAGREE:** “Ultimately, it is through negotiated settlements, with good faith and give and take on all sides, reinforced by the judgments of this Court, that we will achieve what I stated in *Van der Peet*...to be a basic purpose of s. 35(1) – ‘the reconciliation of the pre-existence of aboriginal societies with the sovereignty of the Crown’”: *Delgamuukw v British Columbia*, [1997] 3 SCR 1010 at para 186.